



Appeal Decision

Site visit made on 3 August 2026

by Ryan Cowley MPlan (Hons) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 27 August 2026

Appeal Ref: 6009680

The Bradford Golf Club, Hawksworth Lane, Guiseley, Leeds LS20 8NP

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr C Proctor, on behalf of Bradford Golf Club, against the decision of Leeds City Council.
 - The application Ref is 25/05530/FU.
 - The development proposed is provision of sports netting system with associated works.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. On 17 August 2026, a revised National Planning Policy Framework (the Framework) was published. The parts of the Framework relevant to this appeal have not substantively changed. I have thus not sought further submissions. I have had regard to the latest version of the Framework where relevant in this appeal.

Main Issues

3. The main issues are the effects of the proposal on:
 - the character and appearance of the area, including the setting of the Tranmere Park Conservation Area (CA) and protected trees;
 - the living conditions of the occupiers of neighbouring properties; and
 - ecology and nature conservation.

Reasons

Character and appearance (incl. the CA and trees)

4. The appeal site comprises a narrow strip of land within a golf club site on the edge of an existing urban area. It sits south of the club house and close to the eastern boundary of the wider site. To the north and east are residential areas, while to the south and west is the golf course itself, beyond which lies open countryside. The proposal would introduce a line of 15-metre-tall steel lattice towers with a galvanised finish along the eastern edge of the golf club. A black knotted polyethylene mesh would be suspended between the towers.
5. The site sits outside of, albeit immediately adjacent to, the Tranmere Park CA, a designated heritage asset. Section 72(1) of the Planning (Listed Building and

Conservation Areas) Act 1990 requires special attention be given to the desirability of preserving or enhancing the character or appearance of conservation areas.

6. The CA encompasses residential areas to the west of Guiseley. It is composed primarily of detached and semi-detached dwellings and bungalows, within generously sized landscaped plots, arranged along winding streets and surrounded by countryside. Dwelling designs are influenced by the Arts and Crafts style of architecture. The mature vegetation, woodland, street trees and verges that punctuate the area further enhance its visual attractiveness and cohesion.
7. The significance of the CA, in so far as it relates to this appeal, is therefore derived from its prevailing architectural features, housing types and verdant appearance combined with the interconnection to the surrounding landscape and the clear vision and continuity in the style of the estate over various phases.
8. Though netting systems are typically not out of character for a golf club, the appeal proposal would sit very close to the boundary of the site, in proximity to low density residential areas and within the immediate setting of the CA. Due to its considerable height, the proposal would loom over the area as an obtrusive incursion into the skyline. The towers themselves would have an industrial and utilitarian appearance markedly at odds with the distinctive architecture, built form and landscape setting of the immediate surroundings. The proposal would therefore fail to preserve or enhance the prevailing character and appearance of the CA or its setting and would ultimately detract from its significance.
9. Additionally, the eastern boundary of the site is lined by a row of mature trees, sitting within the rear garden of the adjacent property, that are protected by the CA status. There is a further grouping of trees on the golf course to the south-west. The evidence indicates that 4 of the trees are of moderate quality with a life expectancy of at least 20 years, as are the grouping of trees to the south-west. The netting system would cut across the Root Protection Area (RPA) of 2 trees and the south-west group, with 3 of the proposed towers sited close to the RPAs.
10. While the development above ground may not significantly interfere with existing trees, the plans show that foundation work for the towers would encroach on at least 2 RPAs. Additional harm could arise through the routing of construction traffic and ancillary engineering operations. There are limited details of tree protection measures or construction methods before me. It has thus not been adequately demonstrated that the proposal would not harm protected trees. The loss of protected trees along the boundary would further harm the significance of the CA.
11. The proposal would have a harmful effect on the character and appearance of the area, including the setting of the Tranmere Park CA and protected trees. It would conflict with policies P10, P11 and P12 of the Core Strategy (as amended by the Core Strategy Selective Review 2019) Amendments Adopted September 2019 (the Core Strategy), saved policies GP5 and N19 of the Unitary Development Plan (Review 2006) (UDPR) and policy Land 2 of the Natural Resources and Waste Local Plan Adopted January 2013 (NRWLP). These policies, among other provisions, seek to ensure that development provides good design appropriate to its location, scale and function; protects the character and quality of townscapes and landscapes; and conserves trees wherever possible. They also seek to ensure that development adjacent to conservation areas preserves or enhances the character or appearance of the area and the historic environment.

12. With regard to policy HE6 of the Framework, substantial weight must be given to the conservation of the CA. The proposal would cause harm to the significance of the CA through effects on its setting, and harm to protected trees. This harm would be moderate due to the scale of the development and its proximity to the CA. It would also be experienced from various vantage points both within and outside of the CA. Any such harm must be weighed against the public benefits of the proposal, which I return to in my overall planning balance below.

Living conditions

13. The submitted plans describe a 28mm mesh size suspended from 14mm polyester ropes. The development would sit alongside the private gardens of the dwellings along Greenfield Lane. The distance between the rear elevations of these dwellings and the shared boundary with the golf club is comparatively modest.
14. The use of a mesh netting system and lattice towers would allow views and sunlight to pass through to a considerable degree. Nevertheless, due to its proximity to the boundary, combined with its significant height and width, the proposal would inevitably dominate the outlook from neighbouring properties, appear overbearing and create a sense of enclosure for neighbouring occupiers.
15. Moreover, no formal assessment of the effect on daylight and sunlight to neighbouring properties is before me. Given its orientation, the netting system is likely to cast a netted shadow across the garden areas and rear elevations of these properties at times, and particularly later in the day, when the sun is lower in the sky to the west. The density of the shadow would vary based on the final specification of the netting and the angle of the sun throughout the day.
16. While the appellant has suggested that a planning condition could be used to secure final details of the size, type, colour and material used for the netting to ensure the specification is suitable, it has not been adequately demonstrated that an acceptable solution that could both serve its purpose and maintain the living conditions of neighbours can be achieved. Reserving this matter to a condition would thus not be appropriate in this case.
17. I recognise there are intervening trees in places that may mitigate some of the identified harm. However, there remain considerable sections of the boundary that are entirely unscreened above the timber fenceline. Moreover, any screening from deciduous trees would be less effective in winter when there are fewer leaves, and when the sun is lower in the sky and likely to be behind the net more often.
18. The proposal would therefore have a harmful effect on the living conditions of the occupiers of neighbouring properties. It would be contrary to policies P10 of the Core Strategy and saved policies GP5 and BD5 of the UDPR. These policies, among other provisions, seek to ensure that development protects residential amenity, including through satisfactory sunlight and daylight.

Ecology and nature conservation

19. The evidence indicates that the site is located within the Leeds Habitat Network. Policy G9 of the Core Strategy requires development to be designed to enhance existing wildlife habitats and ensure that there is no significant adverse impact on the integrity and connectivity of the Leeds Habitat Network.

20. The proposal comprises a netting system that could result in harm to local wildlife, including birds and bats that may use the trees surrounding the site. The development is likely to introduce a risk of collisions and entanglement and given its size and length would form a barrier between habitats. There is however no substantive assessment of the impact of the proposal on ecology before me.
21. I recognise that trees can represent somewhat of a natural barrier to flight paths for birds and bats, as do other natural and man-made structures in the environment. However, a tree or grouping of trees is not comparable in form or appearance to a tall and linear artificial mesh barrier, which is unlikely to be commonly encountered by wildlife in this area. The proposal would also be appreciably taller and wider than most other man-made structures in the vicinity.
22. Based on the evidence, the proposal would have a harmful effect on ecology and nature conservation. It would be contrary to policies P10, P12 and G9 of the Core Strategy and saved policy GP5 of the UDPR. These policies, among other provisions, seek to ensure that development conserves, protects and enhances the area's existing natural assets and biodiversity; and proposals resolve detailed planning considerations and avoid problems of environmental intrusion.

Other Matters

23. The appeal site is located within the Green Belt. The Council identified the proposal as appropriate facilities for outdoor sport in connection with the existing golf club for the purposes of Policy GB7 of the Framework (formerly Paragraph 154). Based on its position at the edge of the Green Belt, along an existing boundary, and close to the main club house and car park and the envelope of surrounding development, the Council found that the proposal would preserve openness and would not conflict with the purposes of including land within the Green Belt. On the evidence and my own observations, there is no compelling reason for me to reach a different conclusion on this matter. Accordingly, the proposal would not be inappropriate development in the Green Belt.
24. The appellant sought pre-application advice from the Council prior to proceeding with an application, which indicated the proposal may be acceptable. The Framework acknowledges the benefits of early engagement and good quality pre application discussion. However, such advice is given without prejudice to the outcome of any formal submission and may not be in view of the full circumstances of the case. Accordingly, it cannot be binding on any future decision. I have assessed the proposal on the evidence before me and my own observations. This does not therefore lead me to a different conclusion.

Planning Balance and Conclusion

25. The proposal in this case would cause moderate harm to the significance of the CA through the effects on its setting, and harm to protected trees. In addition, the proposal would also be harmful to the living conditions of the occupiers of neighbouring properties, and to ecology and nature conservation.
26. Weighed against the identified harms are the benefits of the scheme. These would principally relate to the protection of the private properties, gardens and associated structures, including children's play equipment, that adjoin the golf club; and the occupants that use them.

27. Nevertheless, the plans do not adequately depict the full golf course layout and, while such benefits could be significant, representations from both the Council and interested parties state that previous alterations to the course design have reduced the risk to neighbouring properties. The evidence suggests that the area closest to the shared boundary is now used as a practice putting/chipping green, and this aligns with my own observations during my site visit.
28. There is limited assessment of the course layout in the appellant's statement, and it is not clear that consideration has been given to whether there are alternative solutions that might preserve the significance of the CA and its setting and reduce the other identified harms. Accordingly, the weight that can be ascribed to the public benefits of the appeal proposal is limited and, overall, these benefits are insufficient to overcome the identified harms and development plan conflict.
29. In conclusion, the development would conflict with the development plan, taken as a whole. There are no material considerations that indicate the appeal should be determined other than in accordance with the development plan. Consequently, the appeal is dismissed.

Ryan Cowley

INSPECTOR